

22STCV06656 22STCV06656

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 22STCV06656 Hearing Date: August 6, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 6, 2026

Case Name: Penaloza v. General Motors, LLC, et al.

Case No.: 22STCV06656

Matter: Motion for Attorney Fees and Costs

Moving Party: Plaintiff Zuleyma Penaloza

Responding Party: Defendant General Motors LLC

Notice: OK

Ruling: The Motion is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a lemon law matter. The parties have settled this matter, and Plaintiff now seeks "attorneys' fees in the amount of \$93,031.50. [] Plaintiff also incurred costs and expenses totaling \$10,561.85. [] In total, Plaintiff requests an award of fees

and costs in the amount of \$103,593.35.”

Defendant GM initially argues that the Motion is untimely under *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644. The Court does not find GM’s analysis persuasive because on March 13, 2026, the Court entered a minute order as follows: “The Court orders the Amended Complaint (1st) filed by Zuleyma Penaloza on 07/26/2022 dismissed Without prejudice and with the court retaining jurisdiction (Code Civ. Proc., § 664.6).” The instant Motion was filed less than 180 days from the March 13, 2026, minute order. The Court will consider the Motion on the merits.

California courts utilize the lodestar method to determine a reasonable fee award, multiplying the number of hours reasonably expended by a reasonable hourly rate (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132). A court may adjust the lodestar figure downward based on factors such as lack of success, inefficiency, or over-litigation (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 92).

The lodestar figure is premised on 186.1 hours at rates ranging from \$400 to \$695.

The Court finds that the requested hourly rates are excessive, particularly those of attorneys Barry, Quinn, and Storti, and caps senior attorney billing rates at \$500 per hour. While the Court recognizes that several depositions were conducted during discovery, the total hours claimed remain inflated. The invoice reflects template filings, block billing, administrative tasks, and non-compensable time associated purely with Plaintiff’s common-law fraud claim. Exercising its discretion to adjust the lodestar based on inefficiency and over-litigation, the Court reduces the total compensable hours to 100 hours. At a blended reasonable rate of \$500 per hour, the adjusted lodestar totals \$50,000.

While Plaintiff requests costs, a pending motion to tax costs will address that issue.

In sum, the Motion is granted in part. The Court awards \$50,000 in attorney fees.

Moving party to give notice.